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Title 33 —Navigation and Navigable Waters
Chapter I —Coast Guard, Department of Homeland Security
Subchapter C —Aids to Navigation

Part 70 Interference with or Damage to Aids to Navigation

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PART 70—INTERFERENCE WITH OR DAMAGE TO AIDS TO NAVIGATION

Authority: 33 U.S.C. 408, 411, 412; 14 U.S.C. 501, 503, 543, 545, 546.

Subpart 70.01—Interference With Aids to Navigation

§ 70.01-1 General provisions.

No person, excluding the Armed Forces, shall obstruct or interfere with any aid to navigation established and maintained by the Coast Guard, or any private aid to navigation established and maintained in accordance with part 64, 66, 67, or 118 of this chapter.

[CGFR 58-17, 23 FR 3383, May 20, 1958, as amended by USCG-2022-0323, 88 FR 10028, Feb. 16, 2023]

§ 70.01-5 Penalty.

Any person violating the provisions of this section shall be deemed guilty of a misdemeanor and be subject to a fine not exceeding the sum of \$500 for each offense, and each day during which such violation shall continue shall be considered a new offense.

[CGFR 52-15, 18 FR 12, Jan. 1, 1953]

Subpart 70.05—Collision With or Damage to Aids to Navigation

Source: CGFR 52-15, 18 FR 12, Jan. 1, 1953, unless otherwise noted.

§ 70.05-1 General provisions.

No person shall take possession of or make use of for any purpose, or build upon, alter, deface, destroy, move, injure, obstruct by fastening vessels thereto or otherwise, or in any manner whatever impair the usefulness of any aid to navigation established and maintained by the United States.

§ 70.05-5 Penalty.

Every person and every corporation that shall violate, or that shall knowingly aid, abet, authorize, or instigate a violation of the provisions of § 70.05-1 shall be guilty of a misdemeanor, and on conviction thereof shall be punished by a fine of up to \$25,000 per day, or by imprisonment (in case of a natural person) for not less than thirty days nor more than one year, or both, one half of such fine to be paid to the person or persons giving information which shall lead to conviction.

[CGFR 52-15, 18 FR 12, Jan. 1, 1953, as amended by USCG-2009-0416, 74 FR 27438, June 10, 2009]

§ 70.05-10 Revocation of merchant mariner credential officer endorsement or license.

Every master, pilot, and engineer, or person or persons acting in such capacity, respectively, on board any boat or vessel who shall willfully injure or destroy an aid to navigation established and maintained by the United States shall be deemed guilty of violating the provisions of § 70.05-1 and shall upon conviction be punished as provided in § 70.05-5 and shall also have his merchant mariner credential officer endorsement or license revoked or suspended for a term to be fixed by the judge before whom tried and convicted.

[CGFR 52-15, 18 FR 12, Jan. 1, 1953, as amended by USCG-2006-24371, 74 FR 11211, Mar. 16, 2009]

§ 70.05-15 Liability for damages.

Any boat, vessel, scow, raft or other craft used or employed in violating any of the provisions of § 70.05-1 shall be liable for the pecuniary penalties specified in § 70.05-5, and in addition thereto for the amount of damage done by said boat, vessel, scow, raft or other craft, which may be proceeded against summarily by way of libel in any district court of the United States having jurisdiction thereof.

§ 70.05-20 Report required.

Whenever any vessel collides with an aid to navigation established and maintained by the United States or any private aid to navigation established or maintained in accordance with part 64, 66, 67, or 118 of this chapter, or is connected with any such collision, it shall be the duty of the person in charge of such vessel to report the accident to the nearest Officer in Charge, Marine Inspection, in accordance with 46 CFR part 4.

[CGFR 58-17, 23 FR 3383, May 20, 1958, as amended by CGFR 61-55, 26 FR 12572, Dec. 28, 1961; CGD 97-023, 62 FR 33362, June 19, 1997; USCG-2022-0323, 88 FR 10028, Feb. 16, 2023]